

Rahul Pandey v. Kanpur Electricity Supply Co. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 16 March 2023 · Writ - C No. - 59452 of 2017 · **Writ petition disposed of; if the petitioner deposits outstanding dues of Rs.4,246 within two weeks, the authority is to redress the grievance strictly in accordance with law within a further two weeks**

HEADNOTE

Where an applicant for a new electricity connection under the U.P. Electricity Supply Code, 2005 challenges an Executive Engineer order and a Consumer Grievance Redressal Forum order and seeks mandamus for supply to a shop against which dues of Rs.4,246 are raised, the writ court, with the licensee's consent, will not construe Clause 4.1 or quash the impugned orders. If the applicant deposits that outstanding amount within two weeks, the authority is to redress the grievance strictly in accordance with law within a further two weeks. The connection was not directed.

FACTUAL SUMMARY

Rahul Pandey filed Writ-C No. 59452 of 2017 in the Allahabad High Court against Kanpur Electricity Supply Company and four others. He sought certiorari to quash the Executive Engineer's order dated 13 July 2017 and the Electricity Consumer Grievance Redressal Forum's order dated 31 October 2017, and mandamus directing respondents 1 and 2 to provide an electricity connection to his shop at 127/35 MIG, Hamirpur Road, W-Block, Juhi, Kanpur. He said he had applied for a new connection under the Electricity Supply Code, 2005 and deposited the requisite amount. Electricity dues of Rs.4,246 were raised against the shop; he was ready to deposit that sum and asked that the claim be decided in light of paragraph 4.1 of the Code. Counsel for KESCO had no objection. Earlier listings included a 4 May 2022 direction to file a supplementary affidavit of the sale agreement under which he claimed possession of the premises.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection — deposit of shop arrears then consider in accordance with law

QUESTION

Where outstanding dues of Rs.4,246 stand against the shop and the applicant invokes paragraph 4.1, will the writ court grant the connection or quash the Executive Engineer and Forum orders?

HOLDING

No. With the licensee's consent, and without construing Clause 4.1, the writ seeking certiorari against the Executive Engineer's order dated 13.7.2017 and the Forum order dated 31.10.2017, and mandamus for a new connection to the shop, is disposed of: if the petitioner deposits the outstanding Rs.4,246 within two weeks, the authority is to redress the grievance strictly in accordance with law within a further two weeks. The connection was not directed and the impugned orders were not quashed. ¶ 3-6

QUALIFIER

The Court recorded the petitioner's request to decide the claim in the light of Para 4.1; it did not recite the clause or its outstanding-dues proviso.

FLAG Source PDF concatenates listing orders of 13.12.2017, 4.5.2022, 5.1.2023, 12.1.2023, 19.1.2023, 30.1.2023 and 20.2.2023 with this 16.3.2023 disposal. The 16.3.2023 order is unnumbered; paras 1-6 are sequential blocks of that disposal from 'Heard Sri Pawan Kumar'. Coram is the disposing bench of 16.3.2023 (Mahesh Chandra Tripathi and Manjive Shukla, JJ.); earlier listings were before other Division Benches. Cause title records counsel as Pawan Kumar Rao; the disposal names Sri Pawan Kumar. Respondent no.5 is the Electricity Consumer Grievance Redressal Forum; the 31.10.2017 Forum order was not examined.

procedural-consider-in-accordance-with-law

With KESCO's consent, the Court did not grant or refuse the shop connection and did not quash the 13.7.2017 Executive Engineer order or the 31.10.2017 Forum order. It disposed of the writ on a two-week deposit of Rs.4,246, after which the authority was to redress the grievance strictly in accordance with law in a further two weeks. ¶ 3-6

clause-4.1-fourth-proviso-bar-on-new-connection-for-premises-with-outstanding-dues

The Court recorded dues of Rs.4,246 against the shop and made their deposit a condition of the authority proceeding on the new-connection claim. It did not cite the fourth proviso to Clause 4.1 or decide whose dues they were. ¶ 3, 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 ENTITLED THE PETITIONER TO A NEW CONNECTION

Invoked as 'Para 4.1'; not construed. The authority was left to redress the grievance strictly in accordance with law after deposit of Rs.4,246. ¶ 3-6

NOT DECIDED — VALIDITY OF THE EXECUTIVE ENGINEER'S ORDER DATED 13.7.2017

Certiorari was sought; the order was not quashed or examined. ¶ 2, 6

NOT DECIDED — VALIDITY OF THE ELECTRICITY CONSUMER GRIEVANCE REDRESSAL FORUM ORDER DATED 31.10.2017

Certiorari was sought; the Forum order was not quashed or examined. ¶ 2, 6

NOT DECIDED — WHETHER THE RS.4,246 DEMAND WAS CORRECTLY RAISED, AND WHETHER THOSE DUES WERE OF THE PETITIONER OR A PREVIOUS OCCUPIER

The Court recorded the demand and the petitioner's readiness to deposit; it did not adjudicate title to the shop or the provenance of the arrears. A 4.5.2022 listing had directed a supplementary affidavit of the sale agreement under which he claimed possession. ¶ 3, 6